

Council Meeting

April 12, 2023

Page 1

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, April 12, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Scott Pope
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to Suspend Council rules and add a Non-Public under 91-A:3 II(l).

Voice vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Motioned was passed, and will be placed after future agenda items.

Councilor O’Hearne suggested to remove agenda item E.

Council Meeting

April 12, 2023

Page 2

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

A motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to remove item E from the agenda and add it onto the next Council meeting.

Roll call:

O’Hearne – yes

Batchelder - yes

Stone - no

Matteau -no

Koloski - no

Limoges – no

Pope - yes

Mooshian - no

Girard - no

Motion failed 6-3

Assistant Mayor Matteau suggested the Council start the Fee Schedule conversation. Councilor Koloski stated the Council has reviewed enough of the Fee Schedules over the years to at least start the discussion, and any additional questions can be answered at the second meeting.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to suspend Council rules and discuss the Fee Schedule document that was handed out.

Roll call:

O’Hearne – no

Batchelder - yes

Stone - yes

Matteau -yes

Koloski - yes

Limoges – yes

Pope – no

Mooshian - yes

Girard - yes

Motion passed 7-2

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the March 22, 2023, City Council meeting.

Voice vote:

O’Hearne – yes

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Batchelder - yes

Stone - Abstain

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian - yes

Girard - yes

Motion carried 8-0, 1 Abstained

MAYOR'S NOTES

Mayor Girard read a Proclamation for Deputy Chief, Mark Grasso for completing the FBI Academy.

Crystal Simmons, Claremont Officer was awarded the Sullivan County Unsung Hero Award for the work she has done with children.

Senator Hassan was in town today at the Claremont Maker Space for a clean energy discussion.

CITY MANAGER'S REPORT

Manager Manale noted the Claremont Fire Department and members of Golden Cross Ambulance recently participated in a program developed by DHMC to create access to programs to those challenged with opioid and substance addiction, Golden Cross and Claremont Fire Department attended workshops for the Do Not Harm Kits. These kits will be distributed when appropriate.

The City has renewed a Pilot agreement, Payment In Lieu of taxes with Sullivan House, administered by Sullivan County and the Maker Space.

City Staff has been considering a mobile and online application to make it easier for citizens to report problems to departments.

Chamber of Commerce has begun planning the second Saturday monthly celebrations on Pleasant Street. The events will include food, and entertainment. Executive Assistant, Julia from the City Managers Office, Nancy Meyer from Planning, and Nick Lawrence the Director of Parks and Recreation will continue to participate and provide City support.

APPOINTMENT TO BOARDS AND COMMITTEES

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

TIFD

A motion was made by Councilor Pope and seconded by Assistant Mayor Matteau to appoint David Putnam to Seat 1 on the TIFD advisory Board.

Voice vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Upper Valley Lake Sunapee Regional Planning Commission

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to re-appoint Richard Wahlrich to Seat 3 of the Upper Valley Lake Sunapee Regional Planning Commission.

Voice vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Fiske Free Library Board of Trustees

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to appoint Sophia Sushailo to Seat A-2 of the Fiske Free Library Board of Trustees.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Voice vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

CITIZEN’S FORUM

Kevin Tyson, Ward 2, stated a presentation was sent to Council. Mr. Tyson added, the Council has an opportunity to manage information to build a more inclusive community. Mr. Tyson would like to make information more available for the website.

Gary Dickerman, Ward 3, Chair of the Conservation Commission, stated Earth Day is Saturday April 22nd. The Old parking lot on Water St. will be available for trash collection, and De-Camp is offering a dumpster. DPW will help by providing gloves and trash bags to citizens and will be posted on social media.

Jim Neilsen, representing Remix Coffee Bar and Social Club, stated he was approaching Council approximately seven years ago hoping to improve vitality in downtown Claremont with substance free nightlife. Mr. Neilsen thanked the Council and community for support, prayer, and donations and invited all to join Remix on May 12th for their last celebration.

Shawn Catanzaro, Ward 1, shared his story and reviewed the importance of recovery friendly workplaces.

Walt Stapelton, Ward 3, House Representative, reviewed highlights from the House Budget that was passed last week.

Hope Damon, State Representative for District 8, noted the efficient State House process was built on a lot of work. It was the first time since 1989 that the House passed a budget by a voice vote. Representative Damon noted that no New Hampshire town will have less education funding. Representative Damon also invited all to take a tour of the State House. Ms. Damon addressed Remix, and stated people with substance abuse issues are just people, and places like Remix really helps communities.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

OLD BUSINESS

Council Representative on Union Negotiations

A motion was made by Councilor O’Hearne and seconded by Councilor Stone to take the Council Representative on Union Negotiations topic off the table.

Roll call:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - no

Koloski - yes

Limoges – yes

Pope - yes

Mooshian -yes

Girard - yes

Motion carried 8-1

Councilor Stone would like City Council representation on negotiations.

Councilor Batchelder asked how to ensure non-interference.

Councilor Koloski stated there is an attorney present, and the Councilor would not offer anything, and would be purely observation only.

Assistant Mayor Matteau shared concern for a Councilor being present during negotiations, and stated it was the City Managers responsibility to keep the Council apprised.

Manager Manale stated three negotiations are complete, and the fourth has already had one meeting.

A motion was made by Councilor Stone and seconded by Councilor Limoges to have Council representation on all union negotiations effective immediately, and to nominate Councilor O’Hearne to attend the next meetings on Wednesday April 19, and Tuesday April 25th.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to have Council representation on all union negotiations effective immediately, and to nominate Councilor Batchelder to attend the next meetings on Wednesday April 19, and Tuesday April 25th .

Roll call:

O’Hearne – O’Hearne

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Batchelder - Batchelder

Stone - O’Hearne

Matteau - Batchelder

Koloski - Batchelder

Limoges – O’Hearne

Pope - Batchelder

Mooshian - Batchelder

Girard - Batchelder

Motion carried 6-3 in favor of Council Batchelder

NEW BUSINESS

License to Use City Property – Map 152, Lot 7

Director Merrill explained this license comes before the Council every couple of years. Director Merrill is recommending only a year because Planning is investigating the lot for a solar project.

Gary LeClair has had a city license to grow corn on a parcel of city owned land, Map 152, Lot 7, for approximately 11 years. His most recent license has expired and he has asked for a new license. A portion of Map 152, Lot 7 was included under the Option Agreement with Steel Mill Solar, which has expired, however that parcel may be considered in the future for solar power or other use. We would recommend that a license be approved for one year while the Council is considering future use. The agreement would be subject to payment of property taxes levied on his use of the property and subject to a provision that the license may be terminated, without penalty, if the City sells or otherwise develops the property.

Motion to Authorize License for Agricultural Use of City-Owned Property

The Claremont City Council hereby authorizes the City Manager or his designees to negotiate and enter into a License Agreement with Gary LeClair to use a portion of Parcel Map 152, Lot 7 for agricultural use for one (1) year, subject to payment of property taxes levied on Licensee's use of the property and subject to a provision that the license may be terminated, without penalty, if the City sells or otherwise develops the property.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

A motion was made by Councilor Koloski and seconded by Councilor Stone to authorize the City Manager or his designees to negotiate and enter into a License Agreement with Gary LeClair to use a portion of Parcel Map 152, Lot 7

Roll call:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Upper Valley Lake Sunapee Regional Planning Commission Support Letter

Director Merrill stated the letter in the packet was sent from the Regional Planning Commission, and introduced Olivia Uyizeye, to speak on behalf of this support letter.

Councilor Koloski fully supports a letter of support; Councilor Pope would support a letter, but stated he is unsure about support for funding.

Mayor Girard asked for a Consensus to a letter of support, Council Agreed.

Councilor Stone suggested waiting until after budget to support funding.

Assistant Mayor Matteau agrees with Councilor Koloski, and stated the Council could find money in the current budget.

Mayor Girard asked for Consensus to have the City Manager and Director Merrill bring back information to the next City Council meeting, consensus was 6-3 in favor.

Resolution 2023-26 Airport Hazard Beacon Removal Project- SBG 02-27-2023

Chief Burr, explained this is an FAA grant project for the four remaining beacons around the city.

RESOLUTION 2023-26

Resolution 2023-26 Airport Hazard Beacon Removal Project 4Beacons SBG 02-27-2023

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, NH, will be eliminating four hazard beacons located on hilltops around the City.

WHEREAS this project will eliminate the need for airport funds to be used to maintain the poles, transmission lines and replacing beacon bulbs.

WHEREAS the City would like to now accept and expend funds;

BE IT FURTHER RESOLVED to expend the sum of \$248,000.00 with \$12,400.00 or 5%, as the City's share of the project to come from the Airport Special Revenue Fund, with \$223,200.00 as the FAA share of the project, and \$12,400.00 or 5% as the NHDOT-Aeronautics share of the project. (To have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 Vote Required)

Dated this 12th day of April 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Batchelder and seconded by Councilor O'Hearne to adopt Resolution 2023-26. With correction to typo of number.

Councilor Batchelder read resolution 2023-26 into the record

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O'Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian -yes

Girard - yes

Motion carried 9-0

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Tax Bill Notification (City Manager/Director of Finance)

Mr. McCarthy noted this year the City is doing a re-evaluation and is asking the Council to add a simple addition to the tax bill.

Motion to Approve Tax Bill Insert

The Claremont City Council, pursuant to RSA 76:11, hereby authorizes insertion of information regarding the upcoming property tax reassessment into the next tax bill mailings.

Batchelder when would they go out

Councilor Pope asked the notice to be on different colored paper with a bigger font

Councilor Koloski shared concern for the insert; stating citizens may be angry if it doesn't show how the evaluation affects each household, Assistant Mayor Matteau agrees with Councilor Koloski

A motion was made by Councilor Koloski and seconded by Councilor Pope to authorize insertion of information regarding the upcoming property tax reassessment into the next tax bill mailings.

Roll call:

O'Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Fee Schedule

Mayor Girard noted the Fee Schedule isn't scheduled for a public hearing and will be removed from the agenda and placed on the April 26, agenda.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Councilor Koloski asked how did the Council come to this conclusion, and noted it was not appropriate, as he understood the Council was going to go through and start discussing the Fee Schedule.

Assistant Mayor Matteau stated decisions should be made at the Council Table.

COMMITTEE REPORTS

Councilor Stone stated the last Policy meeting the cemetery code was discussed, and will be inviting Department of Public Works to the next one.

Councilor Pope discussed how the Historic District will be brining a zoning ordinance to consider signs to the certificate of appropriateness. Councilor Pope stated the commission looked at the ordinance, and Council should see this shortly to help clean up the process.

Councilor Batchelder noted the Conservation Commission put out two RFQ's and reviewed the Tree Policy, and discussed Earth Day.

FUTURE AGENDA ITEMS AND DIRECTIVES

Assistant Mayor Matteau asked which department is in charge of each part of downtown.

Councilor Stone would like an update for the Bounce house.

Assistant Mayor Matteau also asked for an update on the grey house on Washington St. before Walmart that is falling down. Manager Manale will provide updates for all inquiries.

Non-Public Session Minutes

Members Present:

**O'Hearne
Batchelder
Stone
Matteau
Koloski
Limoges
Pope
Girard**

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Mooshian

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3, II(l) – Consideration of legal advice provided by legal counsel, either in writing or orally, to one or more members of the public body, even where legal counsel is not present.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to enter Nonpublic Session pursuant to RSA 91-A:3, II(l) – Consideration of legal advice.

Roll call vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Pope- yes

Mooshian- yes

Girard - yes

Motion carried 9-0

Entered nonpublic session at 8:10 p.m.

Description of matters Discussed and Decisions made: Settlement Agreement for Former Councilor Contois

A motion was made by Councilor Pope and seconded by Assistant Mayor Matteau to exit the Non-Public Session.

Roll call vote:

O’Hearne – yes

Batchelder – yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Pope - yes

Mooshian- yes

Girard – yes

Motion carried 9-0

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Public session reconvened at 8:29 p.m.

ADJOURNMENT

At 8:30 p.m., a motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to adjourn.

Motion Passed.

Minutes recorded by: Assistant Mayor Matteau

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council